

## 23STCV07528 23STCV07528

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-06-25

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Case Number: 23STCV07528 Hearing Date: June 25, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

JUAN RUIZ

vs.

MILGARD

MANUFACTURING, LLC, et al.

Case

No.: 23STCV07528

Hearing Date: June 25, 2026

Defendants'

motion to confirm the arbitration award deeming Defendant as the prevailing party  
is GRANTED.

On 4/5/2023,

Plaintiff Juan Ruiz (Plaintiff) filed suit against Milgard Manufacturing, LLC,

Milgard Manufacturing Incorporated, Mi Windows and Doors, Inc., Mi Windows and

Door, LLC, Tarcisio Guillen, Warren, Alex Rivera, and Josue (collectively, Defendants) alleging: (1) harassment; (2) discrimination; (3) retaliation; (4) assault; (5) failure to prevent discrimination; (6) aiding and abetting discrimination; (7) intentional infliction of emotional distress; and (8) wrongful termination in violation of public policy.

On

3/27/2026, Defendants moved to confirm the arbitration award.

The

motion is unopposed.

Legal Standard

An

arbitration award is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; Jones v. Kvistad (1971) 19 Cal.App.3d 836, 840.) A party who is satisfied with an arbitration award should move to confirm the award.

A petition to confirm an arbitration award must include the substance of the agreement to arbitrate, the names of the arbitrators, and the opinion of the arbitrator. (Code Civ. Proc., § 1285.4. The general rule is that a court will not review “the merits of the controversy, the validity of the arbitrator’s reasoning, or the sufficiency of the evidence.” (Jordan v. DMV (2002) 100 Cal.App.4th 43; see also Dept. of Personnel Admin. v.

Cal. Correctional Peace Officers Ass’n (2007) 152 Cal.App.4th 1193, 1200 [“an arbitrator’s decision is not generally reviewable for errors of fact or law, whether or not such error appears on the face of the award and causes substantial injustice to the parties.”].) Confirmation of the award is mandatory unless a response or petition to correct or vacate the award has been timely filed. (See Code Civ. Proc. § 1286; Valsan Partners Limited Partnership v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818)

Discussion

Here,

Petitioner’s submitted petition includes the name of the arbitrator, a copy of the award, and the written opinion of the arbitrator. (CCP § 1285.4.)

Confirmation of the award is mandatory unless a response or petition to correct or vacate the award has been timely filed. (See Code Civ. Proc., §§ 1286.4, 1286.8; Valsan Partners Limited Partnership v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818)

Given the lack of opposition, the Court confirms the arbitration award.

Based on the foregoing, Defendants' motion to confirm the arbitration award is granted.

It is so ordered.

Dated: June  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [email protected] by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.